

25STLC00239 25STLC00239

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC00239 Hearing Date: June 30, 2026 Dept: 26

TENTATIVE

RULING:

Defendant Jonathan Justus' Motion

for Summary Judgment is denied without prejudice to bringing a motion in full compliance with the statutory requirements.

Analysis:

On January 14, 2025, Plaintiff Rommy Shy ("Plaintiff"), in propria persona, filed this action for recovery of COVID-19 rental debt against Defendant Jonathan Justus ("Defendant"). Defendant, also in propria persona, filed an Answer on September 17, 2025. Trial in the matter was set for July 14, 2026.

On April 7, 2026, Defendant filed the instant Motion for Summary Judgment. On June 9, 2026, Plaintiff's Motion to Continue Trial came for hearing, upon which the Court placed the motion off calendar and vacated the trial date. (Minute Order, 06/09/26.)

Plaintiff filed an opposition to the instant Motion for Summary Judgment on June 16, 2026 and Defendant replied on June 23, 2026.

Discussion

Defendant moves for summary

judgment on the Complaint pursuant to Code of Civil Procedure section 437c. A defendant seeking summary judgment must show either (1) that one or more elements of the cause of action cannot be established; or (2) that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff is under no evidentiary burden to produce rebuttal evidence until the moving defendant meets its initial moving burden. (*Binder v. Aetna Life Insurance Company* (1999) 75 Cal.App.4th 832, 839-840.)

Under Code of Civil Procedure section 437c, a separate statement must be filed and served in support of, and in opposition to, the motion for summary judgment. (Code Civ. Proc., § 437c, subds. (b)(1), (b)(3).) This is echoed in the California Rules of Court. (See Cal. Rules of Court, rule 3.1350(c) and (e).) The separate statements must plainly and concisely set forth “all material facts that the moving party contends are undisputed” and the opposing party’s response to each of the material facts. (Code Civ. Proc., § 437c, subds. (b)(1), (b)(3).) The moving party’s separate statement of material facts must be set forth in a two-column format with facts on the left-hand side and evidence on the right-hand side. (Cal. Rules of Court, rule 3.1350(h).) Failure to include a separate statement of undisputed facts is grounds to deny a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (b)(1).)

Although Defendant’s Motion states that it is supported by a Separate Statement of Undisputed Material Facts, no such document is in the Court’s docket as having been filed or served upon Plaintiff. (See Notice of Motion, p. 2:8-10.) The moving memorandum of points and authorities includes a section that lists “undisputed facts,” but it does not comply with the formatting and evidentiary requirements. (Motion, p. 8:3-28.) As the Court of Appeals has explained: “Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are in dispute.” (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210, citing *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335.)

Furthermore, it has long been the rule that self-represented litigants are held to the same standards as practicing attorneys. (*Lombardi v. Citizens Nat. Trust etc. Bank* (1955)

137 Cal.App.2d 206, 208–209.) The lack of a supporting or opposing separate statement for the instant Motion for Summary Judgment renders it so procedurally defective that the Court cannot evaluate the parties' arguments in the manner dictated by the Code of Civil Procedure and the California Rules of Court.

Conclusion

Based on the foregoing, Defendant Jonathan Justus' Motion for Summary Judgment is denied without prejudice to bringing a motion in full compliance with the statutory requirements.

Judicial assistant to give
notice.